

TENTATIVE RULING FOR May 26, 2026

Department S22 – Judge David Driscoll

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2522513

WATER AND POWER COMMUNITY CREDIT UNION v. JUAN M. JIMENEZ aka JUAN JIMENEZ; and ANDRES JIMENEZ

TENTATIVE RULING

Currently before this Court is a motion for summary judgment filed by Plaintiff Water and Power Community Credit Union (hereinafter, “Plaintiff”).

This action was commenced on August 4, 2025 by Plaintiff asserting two causes of action against Defendants Juan and Andres Jimenez (hereinafter, “Defendants”) for: (1) Breach of Contract and (2) Claim and Delivery.

Plaintiff alleges that on November 28, 2023, Plaintiff and Defendants entered into an agreement for Defendants to purchase solar panels from Plaintiff by making monthly payments for \$240 (the “Agreement”). (Compl. ¶5, Ex. 1.) Defendants defaulted on the agreement on January 27, 2024 and as of May 4, 2024, owe \$77,625.56. (Compl. ¶¶6-7.)

On November 18, 2025, Defendants filed an Answer, in pro per, generally denying all the allegations in the complaint and alleging multiple affirmative defenses.

On February 17, 2026, Plaintiff filed this present motion for summary judgment, a separate statement, and declaration of Plaintiff’s “Senior Manager of Credit Resolution [and] Asset Quality” Jesus Vasquez, with attached exhibits. The motion seeks summary judgment as to all causes of action. The proof of service of

these documents reflects they were mailed to the same address listed on Defendants' filed answer. Defendants have not filed timely opposition to the motion. (Code Civ. Proc., §437c, subd. (b)(2).)

"The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) "Accordingly, the function of the trial court in ruling on a motion for summary judgment is merely to determine whether such issues of fact exist, and not to decide the merits of the issues themselves." (*Preach v. Monter Rainbow* (1993) 12 Cal.App.4th 1441, 1449-1450.)

Summary judgment is appropriate when there are no material facts in dispute as to any essential element of a cause of action. (Code Civ. Proc. §437c.) Only the pleadings establish the grounds for granting or denying the summary judgment. (*Tsemetzin v. Coast Federal Savings & Loan Assn.* (1997) 57 Cal.App.4th 1334, 1343.)

The moving party bears the burden to establish that there are no material facts in dispute and that they are entitled to judgment as a matter of law. (*Aguilar, supra*, 25 Cal.4th at 850.) "A plaintiff moving for summary judgment must prove each element of each cause of action." (*Los Alamitos Unified School Dist. v. Howard Contracting, Inc.* (2014) 229 Cal.App.4th 1222, 1225.)

Code Civ. Proc., § 437c, subd. (b), requires that a motion for summary judgment "be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." Any evidentiary objections not made are deemed waived. The Court, additionally, must consider reasonable inferences drawn from the presented evidence. (Code Civ. Proc., § 437c; *Mann v. Cracchiolo* (1985) 38 Cal.3d 18, 36.) Declarations and evidence offered in opposition must be liberally construed, while the moving party's evidence must be construed strictly. (*Sprecher v. Adamson Cos.* (1981) 30 Cal.3d 358, 373; *Shively v. Dye Creek Cattle Co., supra*, (1994) 29 Cal.App.4th at 1627.)

Once the moving party's burden has been met, the burden shifts to the opposing party to produce admissible evidence showing a triable issue of material facts exist. (Code Civ. Proc. §437c, subd. (p)(2); *Aguilar, supra*, 25 Cal.4th at 849-851.) "[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element ... necessary to sustain a judgment in his favor." (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). As such, the failure of a party to oppose a motion for summary judgment is not, in and of itself, a sufficient basis for granting the motion as a motion "must stand self-sufficient and cannot succeed because the opposition is weak." (*AARTS Productions, Inc. v. Crocker National Bank, supra*, 179 Cal.App.3d at 1064.)

Analysis.

Cause of Action 1: Breach of Contract.

The elements for a breach of contract are (1) the existence of a contract, (2) the plaintiff's performance or excuse for performance, (3) the defendant's breach, and (4) resulting damages. (*Wall Street Network Ltd. v. N.Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1176.) An express contract is where the terms are stated in words. (Civ. Code §1620.)

Here, per the facts and supporting evidence, Defendants were loaned \$75,000 by Plaintiff to purchase solar panels and related equipment, and agreed to pay Plaintiff back in installments plus interest for 240

months. (UMF 1.) Attached as an exhibit to the complaint and to Mr. Vasquez's declaration is the signed Agreement. (J. Vasquez Decl. Ex. 2.)

As such, Plaintiff has established a contractual relationship. Although Plaintiff does not offer a direct undisputed material fact on point, implicit within the facts and evidence is that Plaintiff performed under the contract by providing the funds, and Defendants accepted the contract by using those funds and making partial payment on the loan. (UMF 3-5; J. Vasquez Decl. Ex. 4-5.) Per the evidence submitted, Defendants breached their contractual agreement by failing to make any payments after January 2024, and the principal due on the loan is \$60,179.00. (*Ibid.*)

Based on the analysis above, Plaintiff has established each element for its breach of contract claim. Given that Plaintiff has presented undisputed evidence, and Defendants have not presented any evidence to rebut Plaintiff's evidence and create an issue of triable fact, the motion for summary adjudication of the first cause of action is granted.

Cause of Action 2: Claim and Delivery.

“[A] cause of action for recovery of specific personal property, a code-based cause of action (see Code Civ. Proc., § 627), often incorrectly referred to as a ‘claim and delivery action.’” (*Eleanor Licensing LLC v. Classic Recreations LLC* (2018) 21 Cal.App.5th 599, 612.) Under the California Civil Code, “[a]ny person having the possession or control of a particular article of personal property, of which he is not the owner, may be compelled specifically to deliver it to the person entitled to its immediate possession.” (Civ. Code, § 3380.)

In a claim and delivery “action it is essential that the specific personal property claimed should be described with a reasonable degree of certainty; and, as a rule, money is not the subject of such an action unless it be marked or designated in some manner so as to make it specific as regards its capability of identification.” (*Hillyer v. Eggers* (1917) 32 Cal. App. 764, 766.)

Here, Plaintiff argues that it should receive possession of the solar panels and related equipment purchased with the funds Plaintiff loaned Defendants. Per the agreement between the parties, everything purchased with the funds loaned by Plaintiff served as security or collateral on the loan. (J. Vasquez Decl. Ex. 2.) Paragraph 7 of the Agreement specifically states that:

Upon any occurrence of default, and to the extent permitted by law, We may declare the entire balance of Your loan immediately due and payable, without prior notice or demand. If the entire balance is not then paid immediately upon default, and if permitted by law, the Collateral shall be voluntarily surrendered to the Credit Union at a time and place acceptable to it. If this is not done, to the extent permitted by law, the Credit Union may enter the premises where the Collateral is located and take possession of it and the Credit Union may assert the defense of a superior right of possession as the holder of a security interest to any offense of alleged wrongful taking and conversion.

(*Ibid.*) The Agreement also describes the security/collateral as “Solar Panels: 25 Panasonic Evervolt EVPV 360 Inverters: ·1 Solar Edge SE7600H_US; Optimizers: 25 Solar Edge S440 HVAC 5 Ton Goodman Cool Roof (Owens Coming).” (UMF 1, 6-7, 9, 11, 14-16; J. Vasquez Decl. Ex. 2 at 1.)

These facts establish the necessary elements of an action for recovery of specific personal property. Once Plaintiff meets its initial burden, the burden shifts to Defendants to show a triable issue as to one or more material facts or a defense thereto, and they may not rely on the mere allegations or denials of their pleadings, but must set forth the specific facts showing a triable issue exists. (*Aguilar, supra*, 25 Cal.4th

at 849.) Given that Defendants have filed no opposition, they have not met their burden. Consequently, the court grants summary adjudication of the second cause of action in favor of the plaintiff.

TENTATIVE RULING

Plaintiff's motion for summary judgement as to the entire action is granted.

Evidentiary Basis for Ruling:

Declaration of Jesus Vasquez and Attached Exhibits

Undisputed Material Facts 1-16.

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CIVSB2536316

NATALIE GIBBS v. FALCON FAMRS, INC., et al.

TENTATIVE RULING:

This litigation concerns an uninhabitable rental. On December 12, 2025, Plaintiff Natalie Gibbs filed her Complaint against Defendants Falcon Farms, Inc. and Chandresh Ravaliya. The Complaint pleads 10 causes of action: (1) breach of contract, (2) breach of warranty of habitability, (3) breach of quiet enjoyment, (4) negligence, (5) private nuisance, (6) intentional infliction of emotional distress (IIED), (7) violation of Penal Code section 496, subdivision (c), (8) retaliatory eviction, (9) violation of Civil Code section 1950.5, and (10) collection of rent on substandard dwelling. Defendant Falcon answered.

The Complaint alleges that on January 17, 2022, Plaintiff Gibbs entered into a 2-year written lease for 9190 Redlands Blvd., Redlands (Subject Property) with the former owner/ manager of the property. Upon moving in, Gibbs noted that the Subject Property had roof leaks, deteriorated and unsafe entry steps, problems with the entrance door, and holes in the floor. She reported the conditions to the former owner/property manager who indicated the issues would be addressed by the new owner, Falcon and/or Ravaliya. Upon the transfer of ownership, Falcon and Ravaliya were informed of the Subject Property condition, but nothing was done. Soon thereafter, Gibbs began experiencing worsening water intrusion and moisture problems. Although reported, no investigation or repairs were undertaken. In early 2024, Gibbs had mold testing performed, which discovered harmful mold within the Subject Property. She reported the mold. In response, Falcon and Ravaliya terminated her tenancy (§§1-3, 9-21).

Per the January 22, 2026, filed Proof of Service of Summons (POS-Summons), Defendant Ravaliya was personally served through her agent for service on January 14, 2026, at 2:58 p.m. Defendant Ravaliya moves to have that service quashed. Plaintiff Gibbs opposes in part. Defendant Ravaliya replies.

The service of a summons is the process by which the court acquires jurisdiction over a defendant in a civil action. (*MJS Enterprises Inc. v. Superior Court (Serpa)* (1984) 153 Cal.App.3d 555, 557 [“*MJS Enterprises*”].) Without substantial compliance with the statutory requirements for service of summons, personal jurisdiction is not conferred, even if the defendant has notice of the litigation. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808; *MJS Enterprises, supra*, 153 Cal.App.3d at p. 557.)

A defendant, on or before the last day to plead, may serve and file a notice of motion to quash service of summons on the grounds that the court lacks jurisdiction. (Code Civ. Proc., §418.10, subd. (a)(1).) When challenging service by a motion to quash, a plaintiff bears the burden of proving by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant by proving the facts requisite to effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

Service of Summons can occur essentially in four manners: (1) personal service (Code Civ. Proc., §415.10); (2) substituted service (Code Civ. Proc., §415.20); (3) by mail with copies of notices of acknowledgment (Code Civ. Proc., §415.30); and (4) by publication if the person cannot be served otherwise (Code Civ. Proc., §415.50).

Judicial Notice

Defendant Ravaliya requests judicial notice of the POS-Summons filed January 22, 2026 (Exh. A). The request is granted per Evidence Code section 452, subdivision (d).

Analysis

Per the POS-Summons, Ravaliya was personally served with the Summons and Complaint by service on Amrdeep Sanhu, as agent for service of process, on January 14, 2026, at 2:58 p.m. (RJN, Exh. A.) Plaintiff indicates when service completed on Falcon, the agent indicated he could accept service on Ravaliya’s behalf. (Gelzayd Decl. at ¶2.)

Personal service is completed when the named person is personally handed the Summons and Complaint. (Code Civ. Proc., §415.10). Ravaliya was never personally served with the Summons and Complaint. (Ravaliya Decl. at ¶2.) One cannot personally serve an individual by serving a corporation’s agent for service.

Thus, the service on Ravaliya was defective. Plaintiff essentially concedes this because her Counsel attests that subsequent substituted service was completed on Ravaliya on April 29, 2026, through service on his wife after prior attempts were unsuccessful. (Gelzayd Decl. at ¶¶7-8, 10, Exh. A.)

TENTATIVE RULING

The court grants Defendant’s Motion to Quash the purported service of the Summons and Complaint on January 14, 2026.